



Bill Number: S.B. 1416

Bolick Floor Amendment

Reference to: PUBLIC SAFETY Committee amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires each law enforcement agency to conduct training once every two years, rather than biannually, regarding:
 - a) the mandatory reporting requirements for a missing, kidnapped or runaway child; and
 - b) the Seek and Find Alert Notification System.
2. Specifies that an LEA must document all decision regarding the provision of outlined information to media outlets and social media platforms in accordance with the agency's documentation policies.
3. Makes technical changes.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1416
(Reference to PUBLIC SAFETY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
[GREEN UPPERCASE STRIKEOUT IN BRACKETS] indicates that the amendment is removing new text from statute or previously enacted session law.
[Green lowercase strikeout in brackets] indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
<<Green strikeout with double green carets enclosing an entire section>> indicates that the amendment is removing the section to the bill.
{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{Orange lowercase underlining in double curly brackets} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
>>Orange strikeout with double orange underlined carets enclosing an entire section>> indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-901, Arizona Revised Statutes, is amended to
3 read:

4 8-901. Missing, kidnapped or runaway children; mandatory
5 reporting; training

6 A. A law enforcement agency that receives a report of a missing[.]
7 [OR] kidnapped [or runaway] child shall do all of the following:

8 1. Within two hours after receiving the report and all necessary
9 and available information, submit [ALL OF] the following information to
10 the Arizona crime information center[;] [AND] the national crime
11 information center computer networks [~~and the national CENTER FOR missing~~
12 ~~and] unidentified persons system [EXPLOITED CHILDREN]:~~

13 (a) The name, date of birth, sex, race, height, weight and eye and
14 hair color of the child.

15 ~~(b) A recent photograph of the child, if available.~~

16 ~~(c)~~ (b) The date and location of the last known contact with the
17 child.

18 ~~(d)~~ (c) The category under which the child is reported missing.

19 2. WITHIN [TWO] [TWENTY-FOUR] HOURS AFTER RECEIVING THE REPORT AND
20 ALL NECESSARY AND AVAILABLE INFORMATION, SUBMIT TO THE NATIONAL CENTER FOR
21 MISSING AND EXPLOITED CHILDREN [~~A RECENT PHOTOGRAPH OF THE CHILD. THE LAW~~

1 ~~ENFORCEMENT AGENCY SHALL MAKE REASONABLE EFFORTS TO OBTAIN A RECENT~~
2 ~~PHOTOGRAPH OF THE CHILD.] [ALL OF THE FOLLOWING INFORMATION:~~
3 (a) ~~A RECENT PHOTOGRAPH OF THE CHILD. IF AVAILABLE. THE LAW~~
4 ~~ENFORCEMENT AGENCY SHALL MAKE REASONABLE EFFORTS TO OBTAIN A RECENT~~
5 ~~PHOTOGRAPH OF THE CHILD.~~
6 (b) ~~THE NAME, DATE OF BIRTH, SEX, RACE, HEIGHT, WEIGHT AND EYE AND~~
7 ~~HAIR COLOR OF THE CHILD.~~
8 (c) ~~THE CATEGORY UNDER WHICH THE CHILD IS REPORTED MISSING.]~~
9 3. ~~WITHIN [TWENTY-FORTY] [TWENTY-FOUR] HOURS AFTER RECEIVING THE~~
10 ~~REPORT, [PROVIDE TO ALL LOCAL MEDIA OUTLETS AND POST TO SOCIAL MEDIA~~
11 ~~PLATFORMS:~~
12 (a) ~~ALL OF THE FOLLOWING INFORMATION REGARDING THE CHILD AND, IF~~
13 ~~KNOWN, THE CHILD'S ABDUCTOR:] [PROVIDE TO APPROPRIATE MEDIA OUTLETS AND~~
14 ~~POST ON THE OFFICIAL SOCIAL MEDIA PLATFORMS OF THE LAW ENFORCEMENT AGENCY~~
15 ~~ALL OF THE FOLLOWING INFORMATION:]~~
16 [(i)] [(a)] ~~A COMPLETE PHYSICAL DESCRIPTION OF THE CHILD [AND, IF~~
17 ~~KNOWN, THE CHILD'S ABDUCTOR].~~
18 [(ii)] [(b)] ~~THE LAST KNOWN LOCATION OF THE CHILD [OR, IF KNOWN,~~
19 ~~THE CHILD'S ABDUCTOR].~~
20 [(iii)] [(c)] ~~A DESCRIPTION OF THE CLOTHING THE CHILD [OR, IF~~
21 ~~KNOWN, THE CHILD'S ABDUCTOR] WAS LAST KNOWN TO BE WEARING.~~
22 [(iv)] ~~A DESCRIPTION OF ANY VEHICLE THAT MAY BE INVOLVED WITH THE~~
23 ~~CHILD'S DISAPPEARANCE.]~~
24 [(v)] [(d)] ~~CURRENT PHOTOGRAPHS OF THE CHILD[(i)] [AND,] IF~~
25 ~~AVAILABLE [, THE CHILD'S ABDUCTOR].~~
26 [(vi)] [(e)] ~~THE LAW ENFORCEMENT AGENCY TELEPHONE NUMBER.~~
27 [(c)] ~~INFORMATION REGARDING ANY OFFERED REWARDS.]~~
28 4. ~~WITHIN THIRTY DAYS AFTER RECEIVING THE REPORT, ENTER IN THE~~
29 ~~NATIONAL MISSING AND UNIDENTIFIED PERSONS SYSTEM ALL REQUIRED AND~~
30 ~~AVAILABLE INFORMATION, INCLUDING, IF AVAILABLE, A PHOTOGRAPH OF THE CHILD~~
31 ~~THAT WAS TAKEN IN THE PREVIOUS ONE HUNDRED EIGHTY DAYS AND MEDICAL AND~~
32 ~~DENTAL RECORDS.]~~
33 ~~2.~~ ~~[4.]~~ [5.] ~~Not later than thirty days after the original entry~~
34 ~~of the record, verify and update the record with any additional~~
35 ~~information, including, [where] [IF] available, medical and dental records~~
36 ~~and a photograph taken during the previous one hundred eighty days.~~
37 ~~3.~~ ~~[5.]~~ [6.] ~~Institute or assist with appropriate search and~~
38 ~~investigative procedures.~~
39 ~~4.~~ ~~[6.]~~ [7.] ~~Maintain a close liaison with state and local child~~
40 ~~welfare systems and the national center for missing and exploited children~~
41 ~~for the exchange of information and technical assistance in the missing~~
42 ~~child case.~~
43 ~~5.~~ ~~[7.]~~ [8.] ~~Grant permission to the national crime information~~
44 ~~center terminal contractor for this state to update the missing child~~
45 ~~record in the national crime information center computer networks with~~
46 ~~additional information that is learned during the investigation and that~~
47 ~~relates to the missing child.~~
48 ~~B. A law enforcement agency that receives a report of a missing,~~
49 ~~kidnapped or runaway child who is in the foster care system shall notify~~

~~1 the national center for missing and exploited children in addition to the~~
~~2 entities listed in subsection A of this section.~~

3 ~~C.~~ B. An entry may not be removed from any database or system
4 until the child is found or the case is closed.

5 C. EACH LAW ENFORCEMENT AGENCY IN THIS STATE SHALL DO BOTH OF THE
6 FOLLOWING:

7 1. DEVELOP, IMPLEMENT AND REGULARLY UPDATE TRAINING CRITERIA
8 REGARDING THE REQUIREMENTS OF THIS SECTION. THE TRAINING SHALL BE
9 COMPREHENSIVE AND SHALL CREATE A SOLID FOUNDATION OF KNOWLEDGE REGARDING
10 THE LEGAL CRITERIA AND PROCESSES REQUIRED BY THIS SECTION.

11 2. CONDUCT TRAINING ON THE PROVISIONS OF THIS SECTION FOR ALL
12 EMPLOYEES OF THE LAW ENFORCEMENT AGENCY, AT THE TIME OF HIRE AND
13 ~~{{BIANNUALLY}}~~ {{ONCE EVERY TWO YEARS}}, WHO HAVE DIRECT INVOLVEMENT IN
14 MISSING CHILDREN CASES, INCLUDING THE SUPERVISORS OF THESE EMPLOYEES AND
15 COMMUNICATION DISPATCHERS. THE TRAINING SHALL INCLUDE A REVIEW OF ANY
16 DEPARTMENT AND STATE POLICIES REGARDING LOCATING MISSING OR ABDUCTED
17 CHILDREN. THE TRAINING SHALL BE COMPREHENSIVE AND SHALL CREATE A SOLID
18 FOUNDATION OF KNOWLEDGE REGARDING THE LEGAL CRITERIA AND PROCESSES
19 REQUIRED BY THIS SECTION.

20 [D. INFORMATION PROVIDED TO APPROPRIATE MEDIA OUTLETS AND POSTED ON
21 OFFICIAL LAW ENFORCEMENT SOCIAL MEDIA PLATFORMS PURSUANT TO SUBSECTION A.
22 PARAGRAPH 3 OF THIS SECTION MAY NOT CHARACTERIZE A CHILD AS A RUNAWAY
23 CHILD UNLESS THE LAW ENFORCEMENT AGENCY DETERMINES THAT THE
24 CHARACTERIZATION OF {{☆}} ~~{{THE}}~~ CHILD AS A RUNAWAY CHILD IS NECESSARY TO
25 PROTECT THE CHILD'S SAFETY OR FURTHER AN ACTIVE INVESTIGATION. A LAW
26 ENFORCEMENT AGENCY IS NOT REQUIRED TO PROVIDE THE INFORMATION REQUIRED BY
27 SUBSECTION A, PARAGRAPH 3 OF THIS SECTION IF THE LAW ENFORCEMENT AGENCY
28 DETERMINES THAT THE INFORMATION WOULD INTERFERE WITH LOCATING A CHILD OR
29 WOULD COMPROMISE THE SAFETY OF A CHILD, AN ONGOING INVESTIGATION OR THE
30 APPREHENSION OF A SUSPECT. A LAW ENFORCEMENT AGENCY SHALL DOCUMENT {{IN
31 ACCORDANCE WITH THE LAW ENFORCEMENT AGENCY'S DOCUMENTATION POLICIES}} ALL
32 DECISIONS REGARDING THE PROVISION OF THE INFORMATION REQUIRED BY
33 SUBSECTION A, PARAGRAPH 3 OF THIS SECTION.]

34 ≤Sec. 2. Section 41-1728, Arizona Revised Statutes, is amended to
35 read:

36 41-1728. Seek and find alert notification system;
37 requirements; definitions

38 A. The department shall establish the seek and find alert
39 notification system as a quick response system designed to issue and
40 coordinate alerts following the report of a missing person who has a
41 developmental disability or a cognitive disability, Alzheimer's disease or
42 dementia or is sixty-five years of age or older as described in subsection
43 B of this section.

44 B. On the request of an authorized person at a law enforcement
45 agency that is investigating a report of a missing person who has a
46 developmental disability or a cognitive disability, Alzheimer's disease or
47 dementia or is sixty-five years of age or older, the department shall
48 request an activation of the emergency alert system and issue a seek and

1 find alert immediately, regardless of the missing person's age, if all of
2 the following conditions are met:

3 1. The missing person has a developmental disability or a cognitive
4 disability, Alzheimer's disease or dementia or is sixty-five years of age
5 or older.

6 2. The law enforcement agency investigating the missing person
7 report:

8 (a) Has used all available local resources.

9 (b) Has determined that the person has gone missing under
10 unexplained or suspicious circumstances.

11 (c) Believes that the missing person is in danger because of age,
12 health, mental or physical disability, environment or weather conditions,
13 that the missing person is in the company of a potentially dangerous
14 person or that there are other factors indicating that the missing person
15 may be in peril.

16 3. There is information available that, if disseminated to the
17 public, could assist in the safe recovery of the missing person.

18 4. The department has been designated to use the federally
19 authorized emergency alert system for the issuance of seek and find
20 alerts.

21 C. The department shall request an activation of the emergency
22 alert system and issue a seek and find alert immediately pursuant to
23 subsection B of this section. A seek and find alert may not be denied or
24 delayed due to administrative processes, prior missing episodes or
25 discretionary assessments that are unrelated to the immediate risk to the
26 missing person's safety.

27 D. If the department issues a seek and find alert pursuant to this
28 section, the department shall provide the seek and find alert information
29 to any other entity that provides similar notifications in this state.

30 E. All law enforcement agencies in this state shall do all of the
31 following:

32 1. Develop, implement and regularly update training criteria
33 regarding the seek and find alert notification system pursuant to this
34 section. The training shall be comprehensive and shall create a solid
35 foundation of knowledge regarding the legal criteria and processes
36 involved in issuing a timely seek and find alert.

37 2. Conduct seek and find alert notification training for all
38 employees of a law enforcement agency, at the time of hire and
39 ~~biannually~~ ONCE EVERY TWO YEARS, who have direct involvement in
40 missing person cases, including the supervisors of these employees and
41 communication dispatchers. The training shall include a review of any
42 department and state policies regarding locating missing, abducted or
43 runaway persons, with a specific focus on seek and find alert
44 procedures. The training shall be comprehensive and shall create a solid
45 foundation of knowledge regarding the legal criteria and processes
46 involved in issuing a timely seek and find alert.

Senate Amendments to S.B. 1416

1 F. For the purposes of this section:
2 1. "Cognitive disability" has the same meaning prescribed in
3 section 36-551.
4 2. "Developmental disability" has the same meaning prescribed in
5 section 36-551. >>

6 Enroll and engross to conform
7 Amend title to conform

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